

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

202200569783CUBC: Michael Gallenberg vs. American Honda Motor Co Inc

08/21/2026 in Department 43

Motion for Attorney Fees/Costs for Michael Gallenberg

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff's Motion for Attorney Fees/Costs.

Tentative Ruling: Plaintiff's Motion for Attorney Fees is GRANTED in the reduced amount of \$75,000.00 as explained below. The motion for costs is DENIED because this motion is not the proper procedural vehicle to claim costs. The denial is without prejudice to recovery of costs by the procedure for recovery of statutory costs described in California Rules of Court rule 3.1700. Because plaintiff filed a memorandum of costs on July 22, 2026, and Defendant declined to file a motion to tax, Plaintiff has established entitlement to the claimed costs and may include them in a proposed judgment or order.

DISCUSSION

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been

reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Code Civ. Proc., § 1794, subd. (d).)

“A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were ‘reasonable in amount.’” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104 [quoting *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816 (internal quotation marks omitted)].)

“The reasonable hourly rate is that prevailing in the community for similar work.” (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].)

“Courts apply the lodestar method in calculating attorney fees.” (*Pulliam*, supra, 60 Cal.App.5th at p. 406.) The court may award fees in a lesser amount if, after considering all the circumstances, it finds that the time expended or monetary charge being made for time expended is not reasonable. (*Nightingale*, supra, 31 Cal.App.4th at p. 104.)

“Costs and expenses” outside of those allowable under Code of Civil Procedure section 1033.5 may be allowed under Civil Code section 1794, subdivision (d), so long as they were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43; see also *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, disapproved on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 204-205; *Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 506-507.)

Plaintiff seeks a lodestar of \$108,024.50 with a 1.5 multiplier. The court determines that the reasonable attorney fee award in this case to be \$75,000.00 reduced due to the following: 1) the case was not efficiently staffed with 13 separate timekeepers; 2) thirty-five percent of the work was billed by the partner at the highest rate submitted although a portion of that work (such as “summarizing trial exhibits”) would have been more appropriately assigned to one of many available associates or paralegals; 3) billing rates exceeding those in the local community (e.g., \$675 for partner exceeds the norm for even a highly specialized and experienced attorney in Ventura County); and 4) recovery sought on an unnecessary summary adjudication motion (re three affirmative defenses) that Plaintiff withdrew after Defendant filed opposition. (See *Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102 [courts may make “across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure” when a voluminous fee application is made]; *Snoeck v. ExakTime Innovations, Inc.* (2023) 96 Cal.App.5th 908, 929 [affirming twenty-percent reduction based on overstaffing, excessive and vague billing, duplicative work, and degree of success].) The court declines to apply a multiplier. Even though this case was litigated over the course of several years and settled after trial documents were prepared, there is no suggestion that the issue were complex or that it was nothing other than a routine Song Beverly case. There were no challenges to the pleadings, such as by demurrer, motion to strike, or motion for summary judgment (other than Plaintiff’s withdrawn motion for summary adjudication of three affirmative defenses), and the case was not tried. There is no evidence that Defendant’s litigation activity resulted in excessive or unnecessary work for Plaintiff. A multiplier is not appropriate.

The court allows costs as stated on the July 22, 2026, cost memorandum in the amount of \$20,817.80. Items on a verified cost bill, if they appear to be proper, are “prima facie evidence that the costs, expenses and services therein were necessarily incurred.” (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 624; see also *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486 [“A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (internal quotation marks omitted)].) Defendant has not filed a motion to tax. The Court does not grant the costs in response to this motion, but allows them pursuant to code.

Moving party is ordered to serve notice of the Court’s ruling.